

		Thus, the second cause of action is adequately alleged and is not uncertain. Defendant to file an answer to the Complaint within 10 days. Moving party to give notice.
104	Mejia Villa vs. Castaneda 23-01314626	Motion to Appoint Receiver and Motion for Preliminary Injunction Plaintiff SARAI MEJIA VILLA (“Plaintiff”) will, and hereby does, move the Court for an order: · Appointing PRABHJIT SINGH MARWAH, Financial Advisor, of RYSE FINANCIAL, San Dimas, CA (or such other neutral person as the Court may select) as receiver over the real properties identified in the concurrently filed declarations (collectively, the “Properties”) and over all rents, issues, profits, and income (the “Disputed Funds”), security deposits, books, and records relating to the Properties, with the powers set forth in the [Proposed] Order; · Issuing a preliminary injunction enjoining Defendant ESTHER CASTAÑEDA, in her representative and individual capacities, and her agents, employees, and all persons acting in concert with her, from collecting, receiving, disbursing, transferring, encumbering, or dissipating any Disputed Funds derived from the Properties; from entering into, modifying, or renewing any lease or rental arrangement for any portion of the Properties; from removing, concealing, altering, or destroying any books or records relating to the Properties; and from interfering with the receiver in the discharge of the receiver’s duties; · Directing Defendant and all persons in possession or control to turn over to the receiver possession of the Properties, together with all Disputed Funds, security

	deposits, keys, leases, books, records, and accounts relating thereto; and · Setting the amount of the undertaking required of the receiver under CCP § 567(b). Initially, a receivership is a harsh, time-consuming, expensive, and potentially unjust remedy and thus is available only where a more “delicate,” alternative remedy (i.e., injunction, writ of possession, attachment, provisional director, lis pendens) is inadequate. In other words, it should not be requested unless essential because no other remedy will do the job. [See City & County of San Francisco v. Daley (1993) 16 CA4th 734, 745] The moving papers must allege facts establishing one of the statutory grounds for appointment of a receiver. [Miller v. Oliver (1917) 174 C 407, 410] Moreover, since a receivership is an equitable remedy, the equitable considerations in an injunction proceeding apply—i.e., there must be a showing of irreparable injury and inadequacy of other remedies. [Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp. (1953) 116 CA2d 869, 872] Here, Plaintiff cites the following statutory grounds for appointing a receiver: Code Civ. Proc., § 564(b)(9), which states: (b) A receiver may be appointed by the court in which an action or proceeding is pending, or by a judge of that court, in the following cases: (9) In all other cases where necessary to preserve the property or rights of any party. Here, Plaintiff has not established any property rights, let alone her interest.
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	She declares: 8. The Properties consist of sixteen parcels of residential rental real property located in Santa Ana, Yorba Linda, Anaheim, Whittier, Big Bear Lake, and Perris, California. The Properties, and (to the extent known) their record title, encumbrances, and approximate values, are identified in the schedule attached as Exhibit 1. The Properties have a combined value exceeding \$20 million. (Declaration of SARAI MEJIA VILLA¶7.) However, Ex. 1 is a sideways Excel sheet of the addresses of various properties, their recording numbers, the grantee/owner, the APN, the recording date, and the rental income. Plaintiff has not established how she has personal knowledge of any of the aforementioned. Plaintiff suggests that she has a property interest in the 16 properties pursuant her “Marvin” claim. The California Supreme Court held in Marvin: In summary, we base our opinion on the principle that adults who voluntarily live together and engage in sexual relations are nonetheless as competent as any other persons to contract respecting their earnings and property rights. Of course, they cannot lawfully contract to pay for the performance of sexual services, for such a contract is, in essence, an agreement for prostitution and unlawful for that reason. But they may agree to pool their earnings and to hold all property acquired during the relationship in accord with the law governing community property; conversely they may agree that each partner's earnings and the property acquired from those earnings remains the separate property of the earning partner.¹⁰ So long as the agreement does not rest upon illicit meretricious consideration, the parties may order their economic
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affairs as they choose, and no policy precludes the courts from enforcing such agreements.

[Marvin v. Marvin (1976) 18 Cal.3d 660, 674–675.]

To that end, Plaintiff declares:

4. During our relationship, the decedent and I agreed that we would pool our earnings and efforts and share equally in the property we accumulated, and that the Properties would be acquired and held for our joint benefit. We also acted consistently with that agreement by jointly contributing to the Properties, jointly managing the Properties, and commingling funds for the Properties' benefit.

5. In reliance on our agreement, I contributed toward the purchase of and down payments on the Properties, raised our children while setting aside my own education, assisted in the continuous operation of our various businesses, managed the Properties alongside the decedent, and contributed to the improvement of the Properties.

(Decl. of Sarai Mejia Villa¶4,5.)

Unfortunately, Plaintiff's only evidence is her self-serving declaration. And, according to her Ex. 1, the properties were not "acquired and held for our joint benefit" because the grantee/owner was Jose Castaneda, Jose M. Castaneda, or Jose Miguel Castaneda, a single man. And Jose Miguel Castaneda is also Decedent's brother and claims title to the properties at issue. (SAC¶2.7, TAC¶12). So, not only were the properties not held for Plaintiff and Decedent's joint benefit, it appears they were possibly held by a 3rd party. Or, alternatively, Decedent used his brother's name to acquire the properties.

Plaintiff attempts to resolve the identity issue with declarations submitted with the reply. But the Court

	will not consider those untimely declarations. [See Jay v. Mahaffey (2013) 218 CA4th 1522, 1537-1538.] Furthermore, Plaintiff provides no evidence that she pooled money toward the down payment on any of the properties. She provides no examples or evidence of managing any of the properties. Furthermore, there is no evidence of irreparable injury and inadequacy of other remedies. [Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp. (1953) 116 CA2d 869, 872.] The 16 properties appear to be investment properties. (Plaintiff Decl¶16.) They are not unique to Plaintiff. There is no evidence that they are in danger of being sold. The only injury here is that Defendant Esther may be spending the rent profits. (Id.¶12.) However, to the extent that is true, that money can likely be traced and provide a basis for damages. Plaintiff provides no reason why these rents could not ultimately be recovered. Plaintiff provides no evidence that Defendant has “allowed property taxes, mortgages, HOA dues, tax withholdings, and required upkeep on the Properties to go unpaid.” (Id¶12.) As to the Yorba Linda property being rented to five to eight separate families, nothing about Plaintiff’s requested relief seeks to change that situation. Additionally, regarding status quo, Decedent passed away on 3/22/2022. On 3/21/2023, this action was filed. That is, whoever has been controlling and managing the 16 properties has done so for 4 years. Trial herein is set for February 2027. Therefore, ordering a receiver at this late stage in the litigation appears unwarranted. As such, the Motion is DENIED. Defendant’s RJN of the Third Amended Complaint and the Motion for Receiver in the Probate Case is granted
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		to the extent the documents were filed, but not as to the truth of the contents therein. Plaintiff’s RJN is denied as no documents were attached. Defendant’s Objections are improper as the objected-to material is not properly identified.
106	Esfahani vs. Bustos 25-01489387	Motion to Seal Defendant, Valeria Bustos (“Defendant”), in pro per, moves to seal “Settlement Agreement-related papers” under California Rules of Court, rules 2.550-2.551. A Request for Dismissal, without prejudice, was filed and entered on November 24, 2025, as to the entire action of all parties and all causes of action. (ROA 18.) The instant motion to seal was filed on June 23, 2026, many months after the Court entered dismissal of the entire action. Considering the dismissal, Defendant’s motion to seal is MOOT. The Court orders the clerk to give notice.
107	Hamidian vs. Avis Budget Group, Inc. 20-01174350	Motion for Severance Plaintiff, Afsaneh Hamidian, moves for an order severing the pending cross-complaints in this action from the trial of Plaintiff’s Complaint, for purposes of trial. Specifically, Plaintiff moves for an order providing that: (1) trial of Plaintiff’s Complaint against Defendant Jeff Oviedo & Associates, Inc. (“JOA”)—the sole remaining defendant—shall proceed first before a jury; and (2) the cross-complaints filed by Avis Budget Group, Inc. (“Avis”), the County of Orange (the “County”), and JOA shall be severed from that trial and